

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

MOHAMED G. SHADID,

Plaintiff,

- against -

THE CITY OF NEW YORK, SHARESE BROOKS,
and "JOHN DOE" #1 - 9, all in Their Individual
Capacities and in Their Official Capacities,

Defendants

17CV1292

COMPLAINT AND DEMAND FOR JURY TRIAL

ECF CASE

Plaintiff, by his attorneys, Michelstein & Associates, PLLC, complaining of the defendants, alleges:

NATURE OF THE ACTION

1. This is a civil rights action to redress the defendants' violations of the rights accorded to plaintiff Mohamed Shadid by the Civil Rights Act of 1871, 42 U.S.C. §1983, by the Constitution of the United States, including the Fourth, Fifth and Fourteenth Amendments, and by the laws and the Constitution of the State of New York.

2. Plaintiff Mohamed G. Shadid is a Muslim citizen of the United States who was present in a subway car in the Broadway Junction station of the L line of the New York City subway system in Brooklyn, New York on December 10, 2015, when he was arrested by New York City police officers Sharese Brooks and “John Doe” #1 - 9 on a false charge of occupying more than one seat in a subway car, subjected to a pat-down search, deprived of a cell phone, handcuffed, removed to the Transit District 33 precinct, where he was imprisoned, and subsequently transported to Brooklyn Central Booking, where he continued to be imprisoned until his arraignment on December 11, 2015, when the charge against him was adjourned in contemplation of dismissal and he was released.

3. The defendants' actions were unlawful, and the plaintiff brings this action seeking compensatory and punitive damages.

JURISDICTION AND VENUE

4. Jurisdiction of this Court is invoked pursuant to the Constitution of the United States, 28 U.S.C. §§1331, 1343(3) and (4), 42 U.S.C. §§1983 and 1988, in that this is an action seeking to redress the violations of the plaintiff's constitutional and civil rights, and 28 U.S.C. §1367(a), in that the state and federal claims arise from a common nucleus of operative facts such that they are so related that they form part of the same case or controversy under Article III of the United States Constitution.

5. Venue is proper in this Court pursuant to 28 U.S.C. §1391(b) and (c) in that all of the events which give rise to the claim occurred within the jurisdiction of the United States District Court for the Eastern District of New York, defendant Sharese Brooks can be found within the Eastern District of New York, and defendant The City of New York is a municipal corporation located in the Eastern District of New York which is subject to personal jurisdiction in the Eastern District of New York.

PARTIES

6. Plaintiff Mohamed G. Shadid is a Muslim citizen of the United States.

7. Defendant The City of New York is, and at all times relevant herein was, a municipal corporation created under the laws of the State of New York.

8. At all times relevant herein, defendant The City of New York maintained a police department.

9. Defendant Sharese Brooks is a natural person who, at all times relevant to this action, was employed by defendant The City of New York as a police officer.

10. At all times relevant herein, defendant Sharese Brooks was acting within the scope of her employment by defendant The City of New York.

11. Defendants “John Doe” #1 - 9 are natural persons who, at all times relevant herein, were employed by defendant The City of New York as police officers.

12. At all times relevant herein, defendants “John Doe” #1 - 9 were acting within the scope of their employment by defendant The City of New York.

NOTICE OF CLAIM

13. On March 7, 2016, and within 90 days of the accrual of his claims herein, plaintiff Mohamed G. Shadid served on the Comptroller of the City of New York a Notice of Claim setting forth the time when, the place where and the manner in which his claims arose.

14. More than thirty days have elapsed since the plaintiff’s Notice of Claim was served upon defendant The City of New York and said defendant has neglected and/or refused to make an adjustment or payment.

STATEMENT OF CLAIMS

15. Plaintiff incorporates by reference paragraphs 1 through 14 of this complaint as though the same were set forth fully herein.

16. On December 10, 2015, plaintiff Mohamed G. Shadid was lawfully present as a passenger on a subway car at the Broadway Junction station of the L line of the New York City subway system.

17. At the above time and place, defendants Sharese Brooks and “John Doe” #1 - 9 approached plaintiff Mohamed G. Shadid and demanded that he show them identification.

18. Defendants Sharese Brooks and “John Doe” #1 - 9 approached plaintiff Mohamed G. Shadid and demanded that he show them identification because he appeared to be Muslim.

19. Defendants Sharese Brooks and “John Doe” # 1 - 9 approached plaintiff Mohamed G. Shadid and demanded that he show them identification because he appeared to be of Middle Eastern decent.

20. The defendants informed plaintiff Mohamed G. Shadid that they were arresting him because his identification was not valid.

21. Defendant Sharese Brooks subsequently charged plaintiff Mohamed G. Shadid with the violation of Disorderly Conduct under Rule 1050.7(j) of the New York City Transit Rules of Conduct based on a false claim that the plaintiff had occupied more than one seat in the subway car.

22. Plaintiff Mohamed G. Shadid had not violated Rule 1050.7(j) of the New York City Transit Rules of Conduct.

23. Defendants Sharese Brooks and “John Doe” #1 - 9 did not have a warrant or other legal process authorizing the arrest of plaintiff Mohamed G. Shadid.

24. Defendants Sharese Brooks and “John Doe” #1 - 9 arrested plaintiff Mohamed G. Shadid on a false charge of Disorderly Conduct because the plaintiff appeared to be Muslim.

25. One of the defendants subjected plaintiff Mohamed G. Shadid to a pat-down search.

26. One of the defendants seized a cell phone from plaintiff Mohamed G. Shadid.

27. The defendants did not have a warrant or other legal process authorizing the seizure of the cell phone from plaintiff Mohamed G. Shadid.

28. The cell phone seized from plaintiff Mohamed G. Shadid has never been returned.

29. One of the defendants handcuffed plaintiff Mohamed G. Shadid.

30. The defendants transported plaintiff Mohamed G. Shadid to the Transit District 33 precinct, where the plaintiff was imprisoned.

31. The plaintiff was subsequently transported to Brooklyn Central Booking, where he was imprisoned until his arraignment.

32. On December 11, 2015, plaintiff Mohamed G. Shadid was arraigned before a judge of the Criminal Court of the City of New York, County of Kings, the charge against him was adjourned in contemplation of dismissal, and he was released from custody.

COUNT ONE
FALSE IMPRISONMENT UNDER 42 U.S.C. §1983

33. Plaintiff incorporates by reference paragraphs 1 through 32 of this complaint as though the same were set forth fully herein.

34. The seizure, detention, arrest, and imprisonment of plaintiff Mohamed G. Shadid by defendants Sharese Brooks and “John Doe” #1 - 9 were made without any warrant or other legal process directing or authorizing his seizure, detention, arrest, or imprisonment.

35. Defendants “John Doe” #1 - 9 acted in concert with defendant Sharese Brooks in the unconstitutional arrest of plaintiff Mohamed G. Shadid and/or could have intervened to stop the arrest.

36. The seizure, detention, arrest, and imprisonment of plaintiff Mohamed G. Shadid were made without probable cause to believe that he had committed a crime or offense.

37. The charge upon which defendants Sharese Brooks and “John Doe” #1 - 9 arrested plaintiff Mohamed G. Shadid was false.

38. The charge was made by defendants Sharese Brooks and “John Doe” #1 - 9 against plaintiff Mohamed G. Shadid with knowledge that it was false.

39. Defendants Sharese Brooks and “John Doe” #1 - 9 arrested plaintiff Mohamed G. Shadid because of his religion and Middle Eastern appearance.

40. Plaintiff Mohamed G. Shadid was aware of his seizure, detention, arrest and imprisonment by defendants Sharese Brooks and “John Doe” #1 - 9.

41. Plaintiff Mohamed G. Shadid did not consent to his seizure, detention, arrest or imprisonment.

42. As a result of the foregoing, plaintiff Mohamed G. Shadid was deprived of his liberty, was imprisoned, and was subjected to mental and physical distress, embarrassment and humiliation.

43. The seizure, detention, arrest and imprisonment of plaintiff Mohamed G. Shadid deprived him of his right to be secure in his person against unreasonable searches and seizures guaranteed by the Fourth Amendment of the Constitution of the United States.

44. Defendants Sharese Brooks and “John Doe” #1 - 9 were acting under color of state law when they seized, detained, arrested and imprisoned plaintiff Mohamed G. Shadid.

45. Defendants Sharese Brooks and “John Doe” #1 - 9 deprived plaintiff Mohamed G. Shadid of his right to be secure in his person against unreasonable searches and seizures guaranteed by the Fourth Amendment of the Constitution of the United States under color of state law, in violation of 42 U.S.C. §1983, by seizing, detaining, arresting and imprisoning plaintiff Mohamed G. Shadid on a false criminal charge.

COUNT TWO
DEPRIVATION OF EQUAL PROTECTION UNDER 42 U.S.C. §1983

46. Plaintiff incorporates by reference paragraphs 1 through 45 of this Complaint as though the same were set forth fully herein.

47. Defendants Sharese Brooks and “John Doe” #1 -9 stopped, questioned and arrested plaintiff Mohamed G. Shadid because of his religion.

48. Defendants Sharese Brooks and “John Doe” #1 - 9 stopped, questioned and arrested plaintiff Mohamed G. Shadid because of his Middle Eastern appearance.

49. Defendants Sharese Brooks and “John Doe” #1 - 9 were acting under color of state law when they stopped, questioned and arrested plaintiff Mohamed G. Shadid on a false criminal charge because of his religion and Middle Eastern appearance.

50. Defendants Sharese Brooks and “John Doe” #1 - 9 deprived plaintiff Mohamed G. Shadid of his right to equal protection of the law guaranteed by the Fourteenth Amendment of the Constitution of the United States under color of state law, in violation of 42 U.S.C. §1983, by stopping, questioning and arresting the plaintiff on a false criminal charge because of his religion and Middle Eastern appearance.

COUNT THREE
UNREASONABLE SEIZURE OF PROPERTY UNDER 42 U.S.C. §1983

51. Plaintiff incorporates by reference paragraphs 1 through 50 of this Complaint as though the same were set forth fully herein.

52. The seizure of a cell phone from plaintiff Mohamed G. Shadid was made without any warrant or other legal process directing or authorizing the seizure of the cell phone.

53. Defendants “John Doe” #1 - 9 acted in concert with defendant Sharese Brooks in the seizure of a cell phone from plaintiff Mohamed G. Shadid and/or could have intervened to prevent the seizure of the cell phone.

54. As a result of the seizure of the cell phone, plaintiff Mohamed G. Shadid was deprived of the possession and use of the cell phone.

55. The seizure of a cell phone from plaintiff Mohamed G. Shadid deprived him of his right to be secure in his effects against unreasonable searches and seizures guaranteed by the Fourth

Amendment of the Constitution of the United States.

56. The seizure of a cell phone from plaintiff Mohamed G. Shadid deprived him of his right not to be deprived of property without due process of law guaranteed by the Fifth and Fourteenth Amendments of the Constitution of the United States.

57. Defendants Sharese Brooks and “John Doe” #1 - 9 were acting under color of state law when they seized a cell phone from plaintiff Mohamed G. Shadid.

58. Defendants Sharese Brooks and “John Doe” #1 - 9 deprived plaintiff Mohamed G. Shadid of his right to be secure in his effects against unreasonable searches and seizures guaranteed by the Fourth Amendment of the Constitution of the United States and his right not to be deprived of property without due process of law guaranteed by the Fifth and Fourteenth Amendments of the Constitution of the United States under color of state law, in violation of 42 U.S.C. §1983, by seizing a cell phone from plaintiff Mohamed G. Shadid.

COUNT FOUR
MUNICIPAL LIABILITY UNDER 42 U.S.C. §1983

59. Plaintiff incorporates by reference paragraphs 1 through 58 of this Complaint as though the same were set forth fully herein.

60. The acts complained of were carried out by defendants Sharese Brooks and “John Doe #1 - 9 in their capacities as police officers pursuant to the customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

61. Defendant The City of New York implemented, enforced, encouraged and sanctioned a policy, practice and/or custom of stopping, questioning and arresting persons on the basis of their

Muslim and/or Middle Eastern appearance in violation of the Equal Protection Clause of the Fourteenth Amendments of the Constitution of the United States.

62. Defendant The City of New York was aware that its police officers were singling out individuals for stopping, searching, questioning and arresting based on their Muslim and/or Middle Eastern appearance.

63. Defendant The City of New York encouraged its police officers to single out individuals for stopping, searching, questioning and arresting based on their Muslim and/or Middle Eastern appearance.

64. By encouraging its police officers to stop, search and arrest individuals based on their Muslim and/or Middle Eastern appearance, defendant The City of New York demonstrated deliberate indifference to the rights of persons with whom its police officers come into contact.

65. The arrest and imprisonment of plaintiff Mohamed G. Shadid on December 10, 2015 resulted from the policy of defendant The City of New York to stop, search, question and arrest individuals based on their Muslim and Middle Eastern appearance.

66. Defendant The City of New York was acting under color of state law when it formulated and implemented a policy, custom or practice for police officers to stop, search, question and arrest individuals of Muslim and Middle Eastern appearance.

67. Defendant The City of New York deprived plaintiff Mohamed G. Shadid of his right to equal protection of the law guaranteed by the Fourteenth Amendment of the Constitution of the United States under color of state law, in violation of 42 U.S.C. §1983, by adopting and enforcing a policy, practice or custom of stopping, searching, questioning and arresting individuals based on their Muslim and Middle Eastern appearance.

COUNT FIVE
MUNICIPAL LIABILITY UNDER 42 U.S.C. §1983

68. Plaintiff incorporates by reference paragraphs 1 through 67 of this Complaint as though the same were set forth fully herein.

69. Defendant The City of New York has engaged in a policy, practice or custom of enforcing Section 1050.7(j) of the New York City Transit Rules of Conduct disproportionately against members of minority groups, to wit, African-American, Hispanic and Muslim or Middle Eastern individuals.

70. Upon information and belief, the vast majority of individuals arrested for violation of Section 1050.7(j) of the New York City Transit Rules of Conduct were African-American, Hispanic, Muslim, or Middle Eastern in appearance.

71. The disproportionate enforcement of Section 1050.7(j) of the New York City Transit Rules of Conduct against African-American, Hispanic, Muslim and Middle Eastern individuals was the result of racial profiling by defendant The City of New York and its police officers.

72. The disproportionate arrest of individuals of African-American, Hispanic, Muslim and Middle Eastern ethnicity for violation of Section 1050.7(j) of the New York City Transit Rules of Conduct demonstrated a deliberate indifference to the rights of persons with whom police officers come into contact by defendant The City of New York.

73. Defendant The City of New York knew, or should have known, that as a direct result of this policy, practice and/or custom, the Constitutional rights of plaintiff Mohamed G. Shadid would be violated.

74. Defendant The City of New York was acting under color of state law when it adopted a policy, practice or custom of enforcing Section 1050.7(j) of the New York City Transit Rules of

Conduct disproportionately against members of minority groups.

75. Defendant The City of New York deprived plaintiff Mohamed G. Shadid of the equal protection of the law guaranteed by the Fourteenth Amendment of the Constitution of the United States under color of state law by engaging in a policy, custom or practice of racial highlighting in enforcement of Section 1050.7(j) of the New York City Transit Rules of Conduct.

COUNT SIX
MUNICIPAL LIABILITY UNDER 42 U.S.C. §1983

76. Plaintiff incorporates by reference paragraphs 1 through 75 of this Complaint as though the same were set forth fully herein.

77. Upon information and belief, at all times relevant herein, defendant The City of New York was aware from Notices of Claim, lawsuits, claims filed with the New York City Police Department and the Civilian Complaint Review Board, and from the New York City Police Department's own observations, that defendants Sharese Brooks and "John Doe" #1 - 9 are unfit, ill tempered police officers who have the propensity to commit the acts alleged herein.

78. Upon information and belief, defendant The City of New York failed adequately to investigate prior complaints against these officers.

79. The failure of defendant The City of New York properly to take remedial action to train, retrain, supervise, monitor and discipline police officers for violations of Constitutional rights constituted deliberate indifference to the rights of persons with whom its police officers come into contact.

80. Defendant The City of New York knew, or should have known, that as a direct result of this policy, practice and/or custom, the Constitutional rights of plaintiff Mohamed G. Shadid would be violated.

81. Defendant The City of New York implemented, enforced, encouraged, sanctioned and failed to rectify such policy, practice and/or custom with deliberate indifference to and disregard for the civil rights of individuals, and more particularly, the civil rights of plaintiff Mohamed G. Shadid.

82. Defendant The City of New York was acting under color of state law when it formulated and implemented a policy, custom or practice of failing adequately to investigate complaints against police officers for violating civil rights and to take appropriate remedial action.

83. Defendant The City of New York deprived plaintiff Mohamed G. Shadid of his right to be secure in his person against unreasonable searches and seizures guaranteed by the Fourth Amendment of the Constitution of the United States under color of state law, in violation of 42 U.S.C. §1983, by adopting and enforcing a policy, practice or custom of failing adequately to investigate complaints against police officers and to take appropriate remedial action to prevent further violations of the civil rights of members of the public.

COUNT SEVEN
COMMON LAW ASSAULT AND BATTERY

84. Plaintiff incorporates by reference paragraphs 1 through 83 of this Complaint as though the same were set forth fully herein.

85. Defendants Sharese Brooks, “John Doe” #1 - 9 and the City of New York committed an assault and battery on the person of plaintiff Mohamed G. Shadid by handcuffing his wrists.

86. As a result of the foregoing, plaintiff Mohamed G. Shadid experienced pain, physical and emotional distress, hardship and anxiety.

COUNT EIGHT
COMMON LAW ASSAULT AND BATTERY

87. Plaintiff incorporates by reference paragraphs 1 through 86 of this Complaint as though the same were set forth fully herein.

88. Defendants Sharese Brooks, “John Doe” #1 - 9 and The City of New York committed an assault and battery on the person of plaintiff Mohamed G. Shadid by subjecting the plaintiff to a pat down search.

89. As a result of the foregoing, plaintiff Mohamed G. Shadid experienced physical discomfort and emotional distress, hardship and anxiety.

COUNT NINE
COMMON LAW FALSE IMPRISONMENT

90. Plaintiff incorporates by reference paragraphs 1 through 89 of this Complaint as though the same were set forth fully herein.

91. Defendants Sharese Brooks, “John Doe” #1 - 9 and The City of New York falsely imprisoned plaintiff Mohamed G. Shadid by seizing, detaining, arresting and imprisoning him on false criminal charges.

92. As a result of the foregoing, plaintiff Mohamed G. Shadid was deprived of his liberty, was imprisoned, and was subjected to mental and physical distress, embarrassment and humiliation.

COUNT TEN
COMMON LAW CONVERSION OF PERSONAL PROPERTY

93. Plaintiff incorporates by reference paragraphs 1 through 92 of this Complaint as though the same were set forth fully herein.

94. Defendants Sharese Brooks and “John Doe” #1 - 9 did not have a warrant or other legal process authorizing the seizure of a cell phone from plaintiff Mohamed G. Shadid.

95. The cell phone which the defendants seized from plaintiff Mohamed G. Shadid was neither the instrumentality nor the proceeds of a crime.

96. Defendants Sharese Brooks and "John Doe" #1 - 9 intended to seize the Samsung cell phone from plaintiff Mohamed G. Shadid.

97. Defendants Sharese Brooks and "John Doe" #1 - 9 seized the Samsung cell phone from plaintiff Mohamed G. Shadid with the intent of depriving the plaintiff of the cell phone.

98. The defendants have failed to return the Samsung cell phone to plaintiff Mohamed G. Shadid.

99. As a result of the seizure and retention of the Samsung cell phone by the defendants, the plaintiff was deprived of the possession and use of the cell phone.

PRAYER FOR RELIEF

WHEREFORE, plaintiff respectfully requests that this Court grant the following relief:

A. Award plaintiff Mohamed G. Shadid compensatory damages to be determined by the jury at the time of trial;

B. Award plaintiff Mohamed G. Shadid punitive damages to be determined by the jury at the time of trial;

C. Award the plaintiff reasonable attorneys' fees and costs, including the fees and costs of experts, incurred in prosecuting this action; and

D. Grant such further relief as the Court deems necessary and proper.

JURY TRIAL DEMANDED

The plaintiff requests a jury trial on all questions of fact raised by his Complaint.

Dated: New York, New York
March 6, 2017

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